

#	Case Name	Tentative
49	Reichert vs. Wightman 25-01481529	1. Motion to Be Relieved as Counsel of Record 2. Motion to Be Relieved as Counsel of Record No Tentative Ruling. Parties to Appear.
51	Cui vs. Tang 22-01258644	Motion to Expunge Lis Pendens Plaintiff/Cross-Defendant Chelsea Cui's motion to expunge the Notice of Pendency of Action recorded against the property located at 65 Dorado Irvine, California, APN 591-361-19 is GRANTED. Code of Civil Procedure section 405.30 authorizes a party or nonparty "with an interest in the real property" to file a motion to expunge the lis pendens. The court "shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim" (Code Civ. Proc., § 405.31), or the real property claim "lacks evidentiary merit." (<i>Park 100 Investment Group II, LLC v. Ryan</i> (2009) 180 Cal.App.4th 795, 808.) The party opposing a motion to expunge a lis pendens has the burden to show that a real property claim has been alleged and has probable validity based upon a preponderance of the evidence. (Code Civ. Proc., §§ 405.30, 405.32.) Code of Civil Procedure section 405.4 provides: " 'Real property claim' means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property" (Code Civ. Proc., § 405.4. This section "defines the type of claim which must be pleaded to support a <i>lis pendens</i>. If the pleading filed by the claimant does not properly plead a real property claim, the lis pendens must be expunged upon motion under CCP 405.31." (<i>BGI Associates, LLC v. Superior Court</i> (1999) 75 Cal.App.4th 952, 956 [citation omitted].) In deciding whether the pleading contains a real property claim, the court must engage in a demurrer-like analysis. The court considers the specific claim as pled to determine whether that claim is a real property claim. Only allegations are examined, not factual evidence. (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 650.)

On March 17, 2025, Cross-Complainants Lina Tang, Qingchuang Fei, and Supreme Beauty Life filed a Notice of Pendency of Action (“Lis Pendens”). (ROA 171.) The Lis Pendens states that Cross-Complainants “brought an action affecting title to the right to possession of the real property commonly known as 65 Dorado Irvine, CA 92618, APN: 591-361-19.” (*Id.* at p. 2, Ins. 6-8.) The pleading at issue in connection with the Lis Pendens is the Second Amended Cross-Complaint (“SAXC”) filed on March 12, 2025. (ROA 165.)

The SAXC’s seventeenth cause of action alleges Cross-Defendants Cui and Wu purchased property in Irvine (the “Property”). (SAXC ¶¶ 37, 174 [ROA 165].) In 2019, Wu quitclaimed his interest in the Property to Cui. (*Id.*) On October 5, 2023, Cui transferred the Property from Cui’s name to an irrevocable trust for which Cui’s mother, Xinfen Wang, is the trustee. (*Id.*) Cross-Complainant Fei learned that Cui’s only asset in the United States is the Property in Irvine. (*Id.*) The SAXC alleges Cui transferred the Property to Xinfen Wang to avoid paying a judgment to Cross-Defendants. (*Id.*) Cui intended to remove or conceal the Property to make it more difficult for Cui’s creditors to collect payment. (*Id.* at ¶ 37.)

The SAXC asserts a “real property claim.” If successful, Cross-Complainants’ fraudulent transfer claim would invalidate the Irvine property’s transfer to the irrevocable trust. (*Mira Overseas Consulting Ltd. v. Muse Family Enterprises, Ltd.* (2015) 237 Cal.App.4th 378, 385 [“ ‘a fraudulent conveyance action seeking avoidance of a transfer ... clearly “affects title to ...” real property and is therefore a real property claim for the purposes of the lis pendens statutes’ ”].)

This alone, however, is not sufficient. (See *Kirkeby v. Superior Court* (2004) 33 Cal 4th 642, 651 [claimant must establish probable validity of the real property claim by a preponderance of the evidence].) Thus, as the party opposing a motion to expunge a lis pendens, Cross-Complainants bear the burden to show that the real property claim has probable validity based upon a preponderance of the evidence. (*Nunn v. JPMorgan Chase Bank, N.A.* (2021) 64 Cal.App.5th 346, 363, citing Code Civ. Proc., §§ 405.32, 405.30.)

Cross-Complainants contend that the facts pled in the SAXC satisfy their burden. The only evidence submitted by Cross-Complainants is the Declaration of Lynne M. Ciani, Cross-Complainants’ counsel. Attorney Ciani, however, declares only that she will spend a total of 7 hours of attorney time in connection with the instant motion. (Ciani Decl. ¶ 2.) This is insufficient for Cross-Complainants to meet their burden to show their claim for fraudulent transfer has probable validity by a preponderance of evidence. The motion to expunge lis pendens is granted.

		Pursuant to Code of Civil Procedure section 405.38, the prevailing party on a motion to expunge is entitled to recover its attorney fees and cost unless specified findings were made supporting the denial of fees. (<i>Castro v. Superior Court</i> (2004) 116 Cal.App.4th 1010, 1018.) Cross-Defendant Cui is the prevailing party for purposes of section 405.38. Cross-Defendant Cui realized her litigation objectives by successfully bringing the motion to expunge lis pendens. The Court awards attorney fees to the prevailing party Cross-Defendant Cui in the sum of \$2,475 (4.5 hours x 550). Cross-Complainants shall pay the attorney fees directly to Cross-Defendant Cui's attorney of record within 30 days of notice of ruling. Cross-Defendant Chelsea Cui to give notice.
53	Phan vs. Bleu Restaurant and Dancing 24-01448536	Motion to Quash Service of Summons The Motion to Quash Service of Summons brought by Specially Appearing Defendant Kenney Nguyen is GRANTED, pursuant to Code of Civil Procedure section 418.10, subd. (a)(1). The service of the summons and complaint which was purportedly completed on May 1, 2026, as reflected in the Proof of Service filed on May 4, 2026 (ROA No. 75), is quashed. The Request for Judicial Notice made by Specially Appearing Defendant Kenney Nguyen (ROA No. 83) is GRANTED, pursuant to Evidence Code section 452, subdivisions (d) and (h). (See also <i>Poseidon Development, Inc. v. Woodland Lane Estates, LLC</i> (2007) 152 Cal.App.4th 1106, 1117.) "A defendant on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion...[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).) "In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant..." (<i>Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 793.) "A party cannot be properly joined unless served with the summons and complaint; notice does not substitute for proper service. Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant." (<i>Ruttenberg v. Ruttenberg</i> (1997) 53 Cal.App.4th 801, 808.)